CITY OF OPA-LOCKA
"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
July 8, 2009
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, July 8, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida, 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks, and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Request to amend the agenda of the Regular Commission Meeting of July 8, 2009 to include the following resolution as item 12-1:

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ESTABLISHING A SEARCH COMMITTEE FOR A CITY MANAGER. *Sponsored by D.J.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion to amend the agenda passed by a 4-1 vote.

Vice Mayor Taylor	No
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Commissioner Johnson pulled 15-3 and Commissioner Holmes pulled 15-1 and 15-2 from the Consent Agenda.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Mayor Kelley asked about the employee of the month program through the Human Resources Department which was done once a month.

Manager Finnie advised that the city had not commenced the Employee of the Month program this year.

Clerk Irby stated for the record the correction to the name as listed on the agenda under Resolutions should read J.P. Griffin instead of Paul Griffin.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – June 24, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Regular Commission Meeting of June 24, 2009 with the above correction as stated by the City Clerk.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

The Miami-Dade County Fire Department Chief was present to address any concerns the Commission may have had. There were no concerns for the Fire Department.

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to Miami-Dade County Commissioner Barbara Jordan, District 1, came forward and announced a foreclosure prevention homeowner assistance workshop on Saturday, July 18, 2009 at Carol City Senior High School hosted by Commissioner Jordan in conjunction with Senator Wilson and the Housing Authority. Also, the Office of Community and Economic Development had released its CDBG funding for small businesses with the deadline date of July 31, 2009.

Previously, Commissioner Johnson requested a representative to speak on the rehabilitation program but she had since spoke to the program manager Bonnye Deese and she preferred to meet with Mrs. Deese prior to it coming before the Commission.

Mr. Brown said he spoke with both project managers for the beautification and rehabilitation programs regarding setting up one on one meetings with the Commission to address any concerns.

Commissioner Holmes said he would be looking forward to having that meeting to discuss the concerns relating to Doretha Parker's home.

10. PUBLIC PRESENTATION:

1. Social Compact
re: services for implementing a census challenge for 2010

Inez Hernandez appeared before the City Commission on behalf of Social Compact, Washington, D.C. and provided an overview of the services provided for implementing a census challenge to make sure cities are counted accurately. Of the services provided, the database would be provided to the City of Opa-locka pro bono.

Commissioner Johnson asked, how is the program funded and whether the program is computerized?

Ms. Hernandez said the program is a user friendly computerized web based program developed by the same people that developed Adobe. Social Compact will provide the data pro bona and the charge is for the Census Challenge is approximately $25,000.00.

10a. CITIZENS' FORUM:

1. John Cook of 14580 NW 27th Avenue, Opa-locka, Florida, appeared before the City Commission to express his concerns relating to the investigation into the car accident which he was involved in. He shared some new complaints with the way he was treated by the Chief of Police.

Commissioner Holmes suggested that Mr. Cook follow the proper procedures when dealing with complaints on a police officer.

Commissioner Johnson directed that the City Manager meet with Mr. Cook for closure on his case.

Commissioner Tydus agreed with Commissioner Johnson on needing some closure on this issue. She continued by expressing her concerns relating to addressing the decorum and public relations of the police officers because she too had received numerous complaints relating to the police department and this problem must be addressed. According to what Mr. Cook had presented, she said there are still issues needing to be dealt with in house.

She directed both the City Manager and Chief of Police meet with Mr. Cook for closure on this issue and that the City Manager provide a written report to the Commission by the next regular commission meeting of July 22, 2009. She suggested that Mr. Cook file a formal complaint with administration.

Mayor Kelley suggested that these types of issues are addressed before it gets to this setting.

2. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and spoke on the proper guidelines for filing a complaint with the police department.

3. Maria Capelles of 60 NW 143rd Street, Miami, Florida, appeared before the City Commission.

Being aware of the fact that Ms. Capelles submitted a letter about a month or two ago to the City Manager regarding the Opa-locka/Hialeah Flea Market, Commissioner Holmes suggested that the proper procedures are followed to deal with her issue with that business. He said he wasn't trying to stop Ms. Capelles from speaking before the Commission; however, any comments made by this Commission relating to this issue would be totally out of order.

Mayor Kelley asked Attorney Weeks if she was aware of the issue.

Attorney Weeks said she was not aware of the issue but this is the public comment section and the Sunshine Law does allow for public comment; therefore, she advised that the resident is allowed to speak.

Manager Finnie stated for the record that what is about to be discussed is a serious matter of allegations that have nothing to do with the City of Opa-locka or its employees.

Commissioner Holmes recalled being copied correspondence from the City Manager's Office. He said he didn't have any comments on this issue and suggested that this individual follow proper procedures.

Mayor Kelley said this individual would be allowed to speak based on the City Attorney's advisement that the Commission cannot deny anyone's right to speak.

Commissioner Johnson stated that she would not be making any comments based on the correspondence she received via email regarding an issue that has nothing to do with the City of Opa-locka.

Ms. Capelles, through an interpreter, continued with allegations against the Opa-locka/Hialeah Flea Market. She pleaded to the Commission for justice in this case.

4. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, came forward to voice his concerns about a scheduled Planning Council Meeting on July 7, 2009 in which the city's contracted planning firm nor the City Attorney were present. Unfortunately, the Planning Council didn't have a quorum.

He continued by saying that there are procedures in place for complaints relating to the police department and he didn't think it was fair for individuals to be concerned about having a police friendly department when the officers are out on the streets risking their lives everyday. He suggested that the Commission support the police officers and not badger them because these men and women are doing the best they can with what they have.

As it relates to the planning firm at the Planning Council Meeting, Mayor Kelley asked, were they instructed not to attend the meeting?

Manager Finnie stated that the planning firm was told not to attend the Planning Council Meeting because there weren't any action items on the agenda and the firm charges hourly for attending meetings.

Mayor Kelley assumed that the information about the planning firm not being in attendance was communicated to the Planning Council members because one of the previous issues was the lack of communication with the Planning Council.

Manager Finnie said the Planning Council was not informed that the planner would not be at the meeting.

Mayor Kelley stated that the meeting would have been a good opportunity for the Planning Council to meet the planning firm; however, the City Attorney should have been in attendance and he would hope this doesn't happen again.

Commissioner Johnson expressed her concerns relating to how the city relays the information to the city's boards. She asked the City Attorney the reason for not having a representative to attend the Planning Council meeting on July 7, 2009.

Attorney Weeks said there was a mix up and she initially thought one meeting was canceled.

Commissioner Holmes interjected and called for point of order and said the Commission was getting off track by asking why the City Attorney did not have representation at the Planning Council Meeting. He suggested this issue be addressed under the City Attorney's Report.

Attorney Weeks continued by saying there was a mix up because there was a Charter Review Board Meeting that was cancelled.

In the future, Commissioner Johnson suggested that whoever sends out the notices to the Planning Council should copy the City Attorney and the City Clerk to avoid any confusion.

5. Tyrell Leggett of 340 Dunad Avenue, Opa-locka, Florida, came forward and thanked the City Commission for the opportunity of working with the city as a part of the Opa-locka Work Learning Experience Summer Program (OWLS).

11. ACTION ITEMS (items from consent agenda pull list):

15-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA SUPPORTING A "70'S COSTUME BALL UNDER THE STARS" CITYWIDE EVENT TO TAKE PLACE ON OCTOBER 31, 2009. *Sponsored by R.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes expressed his disapproval with the above resolution because the City Commission recently passed a resolution for a moratorium on special events and streetnaming.

Commissioner Johnson asked for clarification from the sponsor as it relates to raising funds for this event.

Commissioner Tydus stated that the City Commission approved $5,000.00 in the budget for the Fourth of July which traditionally she had sponsored. Due to the weather forecast of thunderstorms on the Fourth of July she forgo that event as approved in the budget and this particular event is to be in place of the Fourth of July. She further stated that the fourth whereas in the resolution makes reference to ticket sales and there's not going to be ticket sales. The initial 70's Costume Ball last year had no ticket sales and it was a free event. The city budgeted $5,000.00 of which the rest she raised and that is the intent of this particular event as well.

She further stated that she is sponsoring this resolution in an effort to keep proper procedure by which had not been followed by other commissioners in events. She made reference to the recent Father's Day Event which was not budgeted for.

Commissioner Johnson said her concern relating to the ticket sales in the resolution was cleared up by Commissioner Tydus; however, should the Commission continue with discussion, she would feel more comfortable with deleting the ticket sales section in the resolution.

Commissioner Holmes said the Father's Day Event was a fundraised event thanks to the many businesses who gave a donation and it didn't cost the city any money. He continued by stating his displeasure with the above resolution.

Mayor Kelley asked for clarification as it relates to the recent resolution passed by the City Commission for a moratorium. He asked was that a moratorium on streetnaming?

Attorney Weeks replied, yes.

In reviewing the budget, Commissioner Johnson said she noticed the line items for events; however, she just learned that the monies were distributed to another line item. She further expressed her frustration with spending monies without the resolution reflecting the line item in the budget.

Manager Finnie stated that to his knowledge no line item had been adjusted.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Commissioner Holmes expressed his disappointment with the Commission for passing the above resolution after they recently passed a resolution for a moratorium on streetnaming and special events.

Mayor Kelley clarified that the resolution recently passed was for a moratorium on streetnaming and not special events.

15-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SUBMIT A GRANT APPLICATION FOR FUNDING FROM THE MIAMI-DADE COUNTY SAFE NEIGHBORHOOD PARKS (SNP) BOND PROGRAM IN THE AMOUNT OF TWO MILLION TWO HUNDRED THOUSAND DOLLARS ($2,200,000.00) FOR THE SHERBONDY PARK – PHASE II PROJECT. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

In reviewing the resolution, Commissioner Holmes said he noticed that the city is requesting $2.2 Million Dollars. He asked for the total amount available for funding to all municipalities as a part of the Safe Neighborhood Parks (SNP) Bond Program?

Manager Finnie said there is $6 Million Dollars available for all municipalities in Miami-Dade County. The 2.2 million dollars would allow the city to complete 100% of the Sherbondy Park project.

Commissioner Holmes suggested that the City Manager have a more realistic amount in terms of the request to make sure the city receives some funding instead of receiving nothing at all.

Mayor Kelley asked is this grant application all or nothing or would there be an opportunity for downsizing?

Manager Finnie said there is an opportunity to down size prior to sending the application out; however, once all the applications have been received, Miami-Dade County may allocate a lower amount towards this project if the funds are available.

Mayor Kelley expressed his concern relating to the amount being requested by the city and the city being left out at the end because he thought there was a way to downsize.

Manager Finnie said he would take the concerns into consideration; however, this resolution just allows for the city to apply up to 2.2 million dollars.

With the number of cities competing for these dollars, Commissioner Johnson voiced her concern relating to the amount which in her opinion is unreasonable. She suggested that the City Manager fine tune the resolution and bring it back. She asked, what is the deadline date for this grant?

Manager Finnie replied, July 20, 2009.

Commissioner Johnson requested that the City Manager provide the Commission with a copy of the grant application if this resolution is approved. She asked, does this grant require a match?

Manager Finnie said there are matching dollars which the city would already have met with the dollars already allocated for the project. He continued to say that his first answer for the record is that it's all or nothing but that decision is ultimately made upon receipt of the application by the county departments. This request is supplemental to the Sherbondy Park initiative that the city's been working on for quite a while. The city has already identified 2 million dollars for the project but it will take 3 million dollars to complete the first phase. The 2.2 million dollars will allow for completion of all phases of the project. He agreed to review the application with staff and modify the amount but this resolution is authorizing him to apply for an amount up to 2 million dollars.

Commissioner Holmes proposed an amendment to the resolution for a lower amount.

Manager Finnie requested that the Commission pass the resolution with the 2.2 million dollars and then he would look at several smaller projects and submit applications for those smaller projects that would be less aggressive.

Mayor Kelley advised the City Manager that the key is reasonable expectations; the city is shooting for 2 million dollars but there are some reasonable expectations.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

15-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AMENDMENT NO. 8 TO CONTRACT NO. X1167 BETWEEN THE CITY OF OPA-LOCKA AND THE DEPARTMENT OF JUVENILE JUSTICE (DJJ) FOR CONDITIONAL RELEASE PROGRAM SERVICES FOR THE OPA-LOCKA POLICE YOUTH ACADEMY, IN THE AMOUNT OF THREE MILLION TWO HUNDRED FIFTY THREE THOUSAND TWO HUNDRED SIXTY NINE DOLLARS AND NINETY FOUR CENTS ($3,253,269.94) FOR THE PERIOD OF JULY 1, 2009 TO JUNE 30, 2011. Sponsored by C.M.

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Although Commissioner Johnson supports youth initiatives, she expressed her concern relating to the city's expenditure of unbudgeted funds to support this program that not only serves Opa-locka youth but Miami-Dade County as well. Due to financial difficulties, the city cannot continue to subsidize the shortfall for this program but should look into other methods to cover the shortfall. In the past, the Commission directed the City Attorney to look at having DJJ and Crime Prevention becoming a 501c3 to be able to apply for their own grants.

Vice Mayor Taylor asked for clarification on the 3.2 million dollars as reflected in the resolution.

Manager Finnie said the 3.2 million dollars is the number that shows the value of the contract after the state's reduction of $43,000.00.

Commissioner Johnson asked for the number of youth from Opa-locka serviced by DJJ.

Linda Holmes Bracy of the Opa-locka Youth Academy (DJJ) came forward and stated that there are 3 to 4 youth from Opa-locka; but the Department of Juvenile Justice is a State program that serves all youth from Miami-Dade County.

Vice Mayor Taylor asked, should the city give up being responsible for this grant, what would happen?

Mrs. Bracy said the State would shut them down or they would have to ride out with the State.

Vice Mayor Taylor inquired as to whether DJJ could write its own grant?

Mrs. Bracy said because DJJ was not a 501c3, it could not write its own grants.

Mayor Kelley said years ago the number of Opa-locka youth in the program was higher and throughout the years it seems as if the number has decreased. He recalled the directive of the Commission a couple years ago which was for DJJ to become a 501c3 to be able apply not only for any grants out there that dealt with children but that would be able to include more city residents. While he understood that Mrs. Bracy's hands were tied because she had to take what the state dictates to her through DJJ, the real question is whether the city wants to continue to be the conduit for this program. With only 4 Opa-locka residents, the city must look at futuristically whether they want to take that on.

Commissioner Holmes asked, how much money comes out of the city's budget for DJJ?

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the number varies; however, the amount was increasing as the number of participants decreased. For this last year, the amount was approximately $120,000.00.

Because DJJ is an excellent program targeting at-risk youth who have gone through the court system by assisting them get back on track, Commissioner Holmes said he would support the resolution.

Vice Mayor Taylor stated that normally contract years begin on July 1 and end June 30. She asked, is the city already into the contract?

Manager Finnie said the city is commencing on a new contract year but the approval of the 3.2 million dollars covers a multi year contractual arrangement.

Vice Mayor Taylor asked, has the city had to subsidize the DJJ program at all?

Manager Finnie said that the city has had to subsidize the program.

Vice Mayor Taylor said the program has officially started on July 1, 2009.

Manager Finnie said he would do some research to find out if the city has the option to close out or phase out the program.

Commissioner Johnson stated that she is in support of any initiatives for seniors and youth; however, the city must do a 501c3 for this program because they cannot continue to go the same route. She directed the City Manager to have staff start looking at making the DJJ program a 501c3.

Mayor Kelley expressed his concern relating to the contract being for a 2 year period because the city subsidized the DJJ program last year by $120,000.00; therefore, what

would that amount be this year and into the following year. He asked, would the State allow for a 1 year contract as oppose to 2 year contract?

Manager Finnie didn't have an answer to Mayor Kelley's question in terms of a 1 year contract.

Mayor Kelley said he didn't think the issue was whether they support programs for children because obviously the entire Commission is in support of such programs. Dealing with these types of contracts or agreements always puts the Commission in an awkward position because the contracts commences July 1 so actually it has already started; therefore, if the Commission doesn't pass this resolution what would happen to those kids because technically they're in the middle of a summer program.

Manager Finnie said the resolution is for a modification of DJJ's budget in the amount of $43,000.00 and what's left is the 3.2 million dollars. If the children continue to remain in the 35 to 36 range, the city would get reimbursed money. The second part of the discussion is whether this is a worthwhile investment for the city be it the number of children and the fact that this is a difficult budget year. He said he would have to get back to the Commission on the second part of that when looking at whether the city can back out of this if at all possible.

Mayor Kelley said if the Commission doesn't approve this resolution then the program in effect would not have a contract.

Should the Commission not pass this resolution, Manager Finnie said the city may be out of compliance which may mean they don't have a program.

Mayor Kelley said, so basically the Commission is in a no option situation and are locked in.

Manager Finnie said he was not prepared to say that the city was locked into the contract because he had not reviewed the document.

Attorney Weeks commented that she would review the termination provision in the main contract, the 2007 agreement and there's probably a way to get out but she would need to know what the Commission's will is if there is a way to exercise a termination provision after a year.

Mayor Kelley said the Commission can vote on that but the concern is that they like the program but the city is just not in a position going forward to subsidize the cost continuously based on what the Finance Director has stated. He said that he would like to see, if the city funds it, that they get the program into a 501c3 status.

Manager Finnie said he just received information that there's an option in the contract to terminate with written notice.

Commissioner Holmes asked, how many municipalities have the DJJ program within their boundaries?

Mrs. Bracy said Florida City, Opa-locka and Broward County all have conditional release program.

Commissioner Holmes suggested that the city petition those municipalities whose youth benefit from this program so that they can contribute to assist these young kids.

Commissioner Tydus also suggested that if the Commission chose to continue the program to solicit assistance from those communities that represent the outside youth.

Commissioner Johnson stated that if this was going to be a multi year agreement then it would have to be done by ordinance and not resolution.

Attorney Weeks advised that the agreement was done in 2007 and she is not sure whether it was done by ordinance or resolution when it was initially passed by the Commission and that is something she would have to go back and research.

Although the original agreement was passed in 2007, Commissioner Johnson said the charter states that agreements for more than one year should be passed by ordinance and not resolution.

Attorney Weeks said she wasn't sure how the agreement was passed; however, if it is a multi year agreement then it should be done by ordinance pursuant to the charter.

Commissioner Johnson said this item is being presented to the Commission as a resolution; however, according to the charter, they cannot pass this as a resolution. She asked, is this contract time sensitive because technically the city is already into the contract.

Manager Finnie said the city is already into the contract year.

Commissioner Johnson asked about flexibility in terms of this contract because it would have to be passed by ordinance. She directed the City Attorney and City Manager to go back and put this item in the right form.

Based on the charter and what Commissioner Johnson stated, Commissioner Holmes agreed that this item would have to be brought back in the form of an ordinance because it is an agreement for more than one year.

Mayor Kelley said this item is not in the proper format for the Commission to discuss anymore. He asked the City Attorney whether this item needs to be done by ordinance.

Attorney Weeks replied, yes if it is a multi year agreement. She said she noticed a number of different amendments done by resolution previously and she needs to research a little bit more to see how the contract is written.

Mayor Kelley expressed his concern in terms of the City Attorney preparing the resolution in view of the fact that the term was for more than one year. He said that the Commission would not vote on the above item because it was not in the right format.

Vice Mayor Taylor withdrew her second and Commissioner Johnson withdrew her motion on the above resolution.

Mayor Kelley directed that the City Attorney, City Manager and City Clerk meet prior to the commission meetings to review all agenda items. He said if the appointed officials would have met to go over the agenda, the Commission would not have spent all that time on one issue. Additionally, he requested that the Commission is notified via email when they meet.

Commissioner Holmes directed the City Attorney to bring back a resolution so that the City Attorney, City Manager and City Clerk meet prior to any meeting to go over the agenda because too much time is being wasted during the commission meetings.

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ESTABLISHING A SEARCH COMMITTEE FOR A CITY MANAGER. *Sponsored by D.J.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson mentioned that the city's code provides that the Commission can serve as the search committee and this resolution is no disrespect to anyone but to allow for the process to take place.

Attorney Weeks stated that she didn't see in the code where the Commission can serve as the search committee.

Commissioner Johnson directed the City Attorney to bring back an ordinance putting the Commission as the search committee. She asked the City Clerk to find in the city's code where it talks about the search committee.

Clerk Irby stated that there's a code where the Commission initiated a search committee; however, there's another code that states that the Commission doesn't delegate their authority.

Attorney Weeks advised that she would have to bring back an ordinance to change the code making the Commission the search committee.

Commissioner Johnson explained her intentions for the search committee and the timeline for having everything in place.

Vice Mayor Taylor stated that this was not a good resolution at that time because the city has a reputation of having an unstable government. Her concern was the fact that the City Manager had only been in place for six months and the Commission is now putting out a search committee for a new City Manager. She spoke about agencies not wanting to invest in the city because of its many changes in City Managers throughout the years.

She further said that this resolution will not help the city at all; it's going to freeze up money because this resolution does not address the bigger picture.

Commissioner Holmes stated that Mr. Finnie was hired by resolution as an interim City Manager and the record reflects that the Commission stated that they would go out for a search within 12 months. He said he did not have a problem with this resolution because Mr. Finnie would still have the opportunity to apply for the position of City Manager.

Commissioner Johnson stated that she had never called anyone's legislation a bad piece of legislation and she's comfortable with what she's accomplished since 2002. This resolution is just to make sure the Commission is adhering to the city's charter and code until it is modified. This legislation, if passed, would put the city on track and in compliance.

She further disagreed with Vice Mayor Taylor in terms of funding and said that this city has survived for 83 years and will continue to survive. For those that don't support this resolution, there's a process in place and her job is to adhere to it.

Commissioner Tydus stated that she had some issues relating to Mr. Finnie's style and performance. She agreed with both Vice Mayor Taylor in terms of the stability of the city and with Commissioner Johnson as far as the process is concerned. If the resolution hiring Mr. Finnie was for a 12 month period, she agreed with Commissioner Johnson that the process should start to be put in place. However, she didn't think there should be a resignation of Mr. Finnie at this time based on the stability of the city.

She further agreed with Commissioner Johnson as far as the five member search committee being that of the City Commission. She asked, how would that fit into this resolution with the code already stating that the Commission shall appoint a search committee?

Attorney Weeks explained that the resolution makes reference to Article I, Section 2-8.4 of the City's Code of Ordinances which talks about the Commission appointing a member to serve on the selection committee. Commissioner Johnson requested an ordinance which would change that section and appoint the Commission as the selection committee. Because the ordinance requires two readings and the Commission is out during the month of August, she said they would be looking at the first meeting in September before being able to pass the ordinance and start the search committee if they are referring to this section. She said she did not know how the Commission wants to go forward with it; but right now it's with the Commission appointing a person.

Commissioner Tydus expressed her concern to the sponsor in terms of the resolution not having a cut off date for acceptance of applications or resumes for the position of City Manager.

Commissioner Johnson said the intent was to have a workshop to go over the process and how they would like it to be because she would like the ordinance to be brought back so that the Commission can serve as the committee. The entire process should take them close to December which would be the 12 months for Mr. Finnie.

She continued to say that she could make a recommendation of the timeline and bring it to the Commission to see if they agree.

Commissioner Holmes clarified that this resolution did not have anything to do with Mr. Finnie resigning or being terminated; this resolution is solely to put the process in place.

Vice Mayor Taylor agreed with the process but not at that time because the resolution creates an atmosphere of instability.

Mayor Kelley stated that he would support the resolution; however, in hearing the comments about stabilization, the reality of it is, when you don't start it right, it doesn't end right and when Mr. Finnie came in, he didn't come in correctly. Although he wasn't in attendance at that meeting, he had asked the City Attorney on many occasions to show him where Mr. Finnie was hired for twelve months; there's no contract but he has a benefit package which he still doesn't know what it entails. The bottom line is that the biggest policy decision the Commission makes is hiring a City Manager. He said the Commission could take the process to November, December or whenever but this resolution starts the process as it is now.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	No
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE EMERGENCY QUOTE FROM INTERNATIONAL SURVEILLANCE TECHNOLOGY, INC. FOR THE PURCHASE, REPAIR AND INSTALLATION OF MOBILE SURVEILLANCE VEHICLE

EQUIPMENT FOR THE OPA-LOCKA POLICE DEPARTMENT AT A COST OF TEN THOUSAND DOLLARS ($10,000.00), PAYABLE FROM ACCOUNT 65-521493. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS FOR THE PURCHASE OF TWENTY (20) AUTOMATIC FIRE HYDRANT FLUSHING DEVICES FROM ENVIRONMENTAL ENHANCEMENT & TECHNOLOGIES USA, INC., AS A SOLE SOURCE PROVIDER AND IN AN AMOUNT NOT TO EXCEED THIRTY FOUR THOUSAND DOLLARS ($34,000.00), PAYABLE FROM ACCOUNT 64-533630. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR RESIDENTIAL WASTE COLLECTION SERVICES. *Sponsored by C.M.*

The above Consent Agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Tydus	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie introduced Octavian Spanner, Director of Community and Economic Development for the City of Opa-locka for a presentation on the city's proposed Neighborhood Stabilization Application No. 2. The public was encouraged to contact Mr. Spanner with any questions relating to the presentation at (305) 953-2868 Ext. 1503.

Octavian Spanner, Director of Planning and Community Development for the City of Opa-locka came forward and provided a presentation of the city's application to the U.S. Department of Housing and Urban Development (HUD) Neighborhood Stabilization Program (NSP 2) established for the purpose of stabilizing communities that have suffered from foreclosures and abandonment

Commissioner Johnson asked for clarification on the statement made as it related to the city's partnership with Prime Source Mortgage.

Mr. Spanner stated that Prime Source Mortgage is an organization providing foreclosure assistance to the City of Opa-locka as well as homebuyer's assistance and the company is located in the city's administration building at 780 Fisherman Street.

Commissioner Johnson asked whether the city already had an agreement with Prime Source Mortgage.

Manager Finnie advised that the city did not have an agreement with Prime Source Mortgage at this instance; however, the city does have a foreclosure program with Prime Source Mortgage which started months ago. He reiterated that the city didn't have an agreement with Prime Source Mortgage on this program.

***Please Note**: This portion of the minutes is transcribed in verbatim per the request of Commissioner Johnson.*

Commissioner Johnson: So, whatever you guys have agreed to, let me go on record, MOU's, letter of agreements, contracts, needs to come through the Commission. My heart burn is when you...and I have a little savvy about grants, when you are looking for your community partners and they're saying certain things and you're doing certain things, at that point, you put the city at liability. I prefer, and I'm sure my colleagues would appreciate this, knowing when you do you submit. That's why I don't like to approve grants and you're going to bring it back because once you done put everything in there, the Commission got to live with that. And though it's good to have partnership, but have you check them out financially, have you just made sure that they are clear. I'm sure you do all of this because if I ask anybody, that's what they are going to tell me. When the bottom line come, I know that's not done. So I would prefer the partners that you guys are putting, and Madam' Clerk I want this verbatim, into grants that they are included in the package in which we are seeing and all your clearance check to make sure that they are alright, just like we're hiring people to contract with us, are they legal citizens. We have the right to know that and I just don't want us to be caught up sidebar with agreements and all the jive that goes along with it. Those types of agreements and I already got with the Clerk...Madam' Clerk, I don't need you attesting to stuff like that, and then tell me one thing because nine out of ten, I have already did my homework prior to coming to the commission meeting and I know what you got. Little birdies talk to Dottie.

***NOTE**: This concludes the verbatim portion of these minutes.*

Commissioner Johnson requested that Mr. Spanner elaborate on the NSP Administration amount as reflected in the budget summary.

In terms of the NSP Administration allowable, Mr. Spanner explained how he came up with that figure and that the 10% would go to the city.

Commissioner Johnson requested that Ezekiel Orji, Finance Director for the City of Opa-locka provide the Commission with information as to the line item the administrative cost would go into should the city be successful.

Manager Finnie informed the Commission that once the application is finalized, he would provide them with details on the transaction.

He announced that a van would be leaving City Hall on Thursday, July 9, 2009 at 9:15 a.m. for those who are attending Bishop Williams Funeral Service.

He continued by providing several dates for the Commission to consider scheduling the water utility workshop at 6:00 p.m. In the workshop, once the Commission has locked in a date, staff has looked at several short term and long term strategies to discuss and receive feedback. He provided a brief overview of those short and long term strategies to address the water and sewer issues.

He further reported that he had an opportunity to attend the Crime Watch Meeting at Ingram Park on July 7, 2009 and he was impressed with the fact that the crime meeting session had evolved into viable neighborhood entities. As a result of discussions and conversations he's had over the past couple of weeks, he said commencing on Monday, July 13, 2009 he would look at restructuring the city's departments. First and foremost, he will establish in the City Manager's Office without any new cost, a Community Service Office which would reach out to citizens in an effort to address the concerns and complaints.

Lastly, he apologized for not processing the action list but would do so at the next commission meeting.

Mayor Kelley suggested that the Commission save their water related questions for the workshop.

Vice Mayor Taylor thanked the City Manager and staff for the business directory which was one of her recommendations. She also stated that the Neighborhood Stabilization Program was another one of her projects that she had talked to the City Manager and asked him to look into.

She went on to say that she was still concerned about the safety of the Offices of the Commission. Although the receptionist was moved to the front, that individual is still at the mercy of whoever is coming through that door.

Manager Finnie said there's a purchase order that he needs to sign off on to start the construction for the security of that work place.

Commissioner Holmes suggested that the City Manager ensure a safe working environment for everyone on the 4th floor and not just the Office of the Commission.

He continued by saying that he received a complaint about residents keeping their garbage containers in front of their homes. He directed the City Manager to find out whether the city had anything on the books where the garbage containers must be kept on the side or back of their homes until the scheduled pick up date. If not, he suggested that something is brought back to address this issue in an effort to keep the city beautiful.

He further said that it was brought to his attention that the apartments on NW 22nd Avenue have the air conditioners in the windows which is a hazard.

Commissioner Johnson expressed her concerns relating to the flooding and sewage at the 22nd Avenue Apartments and code violations at the Gardens Apartments; placement of city logo on all city vehicles including the trucks; former party supply store near Nathan B. Young Elementary off of SR9 that is overgrown; overgrown grass and weeds near the fence along SR9; and the weeds growing through the sidewalks throughout the city. She requested that the City Manager fast forward the Welcome Kit to September 2009.

She asked, is the city receiving monthly fees from towing companies in the city?

Manager Finnie said the city should be receiving monthly fees but he would have to get back to the Commission with the details. However, there was an issue that a towing company was not paying the city but he believes that issue was addressed.

Commissioner Johnson suggested that the City Manager ensure the city is receiving fees from towing companies and for the burglar alarm ordinance.

She requested that the Commission receive a monthly account report reflecting all monies coming into the city to include franchise fees for Comcast, Direct TV and Dish Network.

Prior to the City Manager coming and since Mr. Finnie first got here, Mayor Kelley said he had asked for the City Manager and his staff to look at creative ways to address some of the concerns and this Neighborhood Stabilization Program is something he mentioned when Mr. Finnie first got to the city.

He further expressed the need to have a workshop to deal with the upcoming budget for this city, not the budget workshop, but a financial analysis workshop to find out the projected revenues, expenditures and cost for the city before getting into the budget process. He recommended that this workshop is held prior to the Commission going into the August break.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and informed them that the monthly report is provided at the 2nd meeting of each month to allow for the closing which takes places approximately the 15th of the month and the quarterly activity reports reflects three months transaction. He reported that the city is suppose to be at 2/3 of the projected expenses and revenues and in looking at the bottom line of the city, it is within the projected 62%. The city is paying all the bills that are coming to the city.

16. OFFICIAL BOARD REPORTS:

John Riley, Chairman and Karen Jackson, Member of the City of Opa-locka Personnel Board appeared before the City Commission. As chairman of the board, Mr. Riley came forward and expressed his concern relating to the conduct of the attorney that was present at the Personnel Board meetings on June 25, 2009 and July 2, 2009 to the point that the attorney was assessed an administrative assessment of $250.00. He suggested that the Commission make sure when the attorney is paid that the $250.00 assessed by the board is deducted from those dollars. Of concern to Mr. Riley was the fact that Section 38 of the city's charter provides that the Commission shall have the sole authority to hire any

additional attorneys to represent the city; however, at one of the meetings, this attorney stated for the record that he was recommended by the City Attorney and hired by the City Manager to represent the city which is in violation of the city's charter, if that statement is true. At the time when the resolution came up to hire representation for the Personnel Board, he said he was confused because he thought the attorney was going to represent the board but instead he is representing the city. He further spoke in terms of following policies and procedures and adhering to the civil service rules and which was not being done.

Mrs. Jackson voiced her disappointment in terms of the city employee's attitude and behavior when being subpoenaed for the Personnel Board hearings in addition to the unprofessionalism of the city's hired attorney and Human Resources Director. Also, the Human Resources Department does not have the procedures in place for retraining or disciplinary action for its employees, if it does, then that information was not provided.

Commissioner Johnson recalled the Commission passing a resolution hiring a firm to represent the city at the Personnel Board meetings but it was brought to her attention that the attorney who was present was from a different firm.

Attorney Weeks explained that there was a resolution which mentioned a firm; however, the resolution was written in such a way that gave her the authority to select a firm because there was a conflict. The firm reflected in the resolution was unable to perform the services so she contacted another firm who represents several cities in which Mr. James Brady is the principal and he is the person Mr. Riley was referring to who appeared before the board. To the best of her knowledge, Mr. Brady did represent the city to the best that he could given the fact that he came in the middle of the process. There was a conflict and it was very difficult for her office to keep switching hats, although there was some preparation held with the employees prior to when Mrs. Kiffin-Lewis was representing the boards on those evenings. Although she had appreciation and understanding from where Mr. Riley was coming from; however, it was an adversarial proceeding and the employees have the right to cross examine and be heard but certainly the city has the right to be defended and that's what probably lead to some of the tension.

Commissioner Johnson suggested that there be communication with the particular committee in order to avoid these types of issue in the future. Secondly, she said she was not comfortable with the change in firms and that should have come back to the Commission; however, she would deal with that separately.

Mr. Riley said he didn't have personal issues on the board and he doesn't take things personally but respect for the board while it's adversarial it is not to be confrontational and an attorney doesn't get confrontational with the board because that is not the duty of an officer of the court.

Mayor Kelley said he wasn't clear in terms of the attorney representing board versus the city which he would address at a later time; however, the city has to address this issue so that while there is some difference of opinions and adversarial, it's not confrontational.

17. CITY ATTORNEY'S REPORT:

Commissioner Johnson directed the City Attorney to bring back a resolution at the next commission meeting for the City Manager to explore the feasibility of bringing the lawn maintenance services in house utilizing the urban rangers, inmates and new hires. She said she would like to get with the City Attorney on this resolution prior to placing it on the agenda. Additionally, she requested a meeting with the City Attorney on Friday, July 9, 2009 to discuss agreements, memorandums of understanding, contracts and the language of resolutions.

Vice Mayor Taylor requested that the City Attorney research and bring back the ordinance 5058 which is an agreement for businesses that operate in the City of Opa-locka to hire a certain percentage of Opa-locka residents. The purpose for bringing this item back is because there was a question brought up at one of the commission meetings about vendors hiring residents within the City of Opa-locka.

18. CITY CLERK'S REPORT:

Previously Commissioner Johnson discussed with the City Clerk her concerns relating to attesting to documents and she said she was serious about this issue because she is concerned in terms of five agreements the City Clerk attested to. In addition to that, she clarified that the Action Item List the City Clerk is preparing from the minutes is solely for the Commission to keep track of those items being requested and she would like that to continue being provided prior to the following meeting as it is currently being done. She specified that the Action Item List is not for city staff but for the City Commission.

She directed the City Clerk to provide the status of the Census 2010 at the next regular meeting along with the feedback in terms of the presentation regarding census.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported that the Teen Court on June 26, 2009 was very successful; she attended several summer camps science projects; Crime Watch – City Night Out on July 7, 2009 and suggested that in the future this event is televised; and she was nominated for the White House Project in which they are looking for females who are looking to become politicians at a State and National level.

She directed that the City Manager have staff hook up her telephone and computer in her office.

Commissioner Holmes announced that the Chief of Police James Smith was honored and recognized recently. He requested that the City Manager allow Chief Smith to come forward.

Chief James Smith of the Opa-locka Police Department came forward and provided details on being honored and recognized at two separate events this past weekend.

Vice Mayor Taylor expressed sympathy to the family and friends of Bishop Williams of Jesus People Ministries and Joyce Conley.

Mayor Kelley also expressed his sympathy to the family and friends of Bishop Williams, Joyce Conley, J.P. Griffin and all those pioneer citizens who have passed. He reported on the fishing trip with the seniors and said he is continuing to meet with individuals who can bring resources to the city.

He encouraged the Commission to provide the City Manager with a date for the workshop on the financial analysis of the city which should be done prior to July 31, 2009 which is date by when the millage has to be set.

After brief discussion on several dates, it was the consensus of the Commission to schedule workshops as follows:

* Monday, July 20, 2009 @ 10:00 a.m. – Financial Analysis
* Monday, July 20, 2009 @ 6:00 p.m. – Water & Sewer

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 10:50 p.m.

MAYOR

ATTEST:

CITY CLERK